

# Smt. Pushpa Jain v. Executive Engineer, Paschimanchal Vidyut Vitran Nigam

Allahabad High Court · Division Bench · 9 April 2010 · Writ - C No. 45458 of 2008 · **New connection withheld until outstanding premises dues are cleared.**

## HEADNOTE

A new electricity connection to premises already carrying unpaid dues of an earlier connection cannot be released until those dues are cleared. After the Electricity Supply Code amendment, the applicant for the new connection is liable for the earlier dues of the same premises. The writ seeking a connection without clearing those arrears was disposed of on that footing.

## FACTUAL SUMMARY

Smt. Pushpa Jain petitioned the Allahabad High Court for a new electricity connection to her premises from Paschimanchal Vidyut Vitran Nigam. The licensee's counsel submitted that she had earlier run a hotel from the same premises with other persons who had obtained a connection and defaulted, leaving large outstanding dues. She now sought a connection in her own name for those premises. Respondents relied on an amendment to the Electricity Supply Code under which the applicant for a new connection bears liability for the earlier dues.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.3

new-connection-premises-arrears

#### HOLDING

Until outstanding electricity dues of an earlier connection to the same premises are cleared, a new connection cannot be released. The Electricity Supply Code, as amended, places liability for those earlier dues on the person taking the new connection. The writ petition was disposed of on that basis. ¶ 3

## PRINCIPLE TAGS

### arrears-run-with-the-premises

A new electricity connection to premises already carrying unpaid dues of an earlier connection cannot be released until those dues are cleared. After the Electricity Supply Code amendment, the applicant for the new connection is liable for the earlier dues of the same premises.. ¶ 3